

Sandeep Kumar vs Of on 9 January, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. Revision No. 717 of 2022 Reserved on: 13.12.2023 .

Date of Decision: 09th January, 2024 Sandeep KumarPetitioner Versus of Smt. Rajni Kumari & anotherRespondents Coram rt Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting? No. For the Petitioner : Mr. Ajay Kumar, Senior Advocate with Mr. Rohit, Advocate.

For the Respondents : Mr. Devender K. Sharma, Advocate.

Rakesh Kainthla, Judge The present revision petition is directed against the order dated 20.09.2022, passed by the learned Principal Judge, Family Court, Bilaspur, H.P. vide which an interim maintenance of 5000/- was granted to respondent no. 1 (petitioner no.1 before the learned Trial Court) and 1500/- to respondent no. 2 (petitioner no.2 before the learned Trial Court) from the date of filing of the application. Parties shall hereinafter be referred to in Whether reporters of the local papers may be allowed to see the judgment? Yes the same manner as they were arrayed before the learned Trial Court for convenience).

.

2. The petitioner had filed a petition under Section 125 of Cr.P.C. for claiming the maintenance. It was asserted that the marriage between petitioner no.1 and respondent was solemnized on 17.05.2020, as per Hindu rites and customs. Respondent of started beating petitioner no. 1 and demanding money to purchase a car. He gave beatings to petitioner no.1 on 23.11.2020 in the rt presence of her mother. Petitioner No.1 became pregnant. The respondent asked her to go for a Sex Determination Test and abort the female child. Petitioner No.1 filed a complaint before SHO, Women Police Station and a case under Section 12 of the Protection of Women from Domestic Violence Act was registered.

The matter was compromised and the respondent undertook to mend his behaviour. The respondent did not mend his behaviour and the petitioner had to leave her matrimonial home. Petitioner No.1 gave birth to a baby girl. The respondent told the petitioner not to visit her matrimonial home or else she would be killed.

The petitioners have no source of income, whereas the respondent is a driver, who is earning 30,000/- per month.

Hence, the interim maintenance was sought.

3. The respondent filed a reply denying the contents of the petition. However, the relationship between the parties was not disputed. It was asserted that petitioner no.1 filed a false .

complaint to harass the respondent. He was ready and willing to maintain the petitioners but petitioner no.1 was not ready to reside with him. Petitioner No. 1 has sufficient means to maintain of herself; therefore, it was prayed that the present petition be dismissed.

4. rt The learned Principal Judge, held that the relationship between the parties was not disputed. The petitioner had filed a complaint under Section 12 of the Domestic Violence Act, which was compromised as per the undertaking given by the respondent.

The respondent's plea that he did not have any source of income was not acceptable. The respondent is under obligation to maintain his wife and minor child. He is a driver and would have sufficient income; therefore, maintenance @ of 5000/- per month was awarded to petitioner no.1 and maintenance @ of 1500/- was awarded to petitioner No.2.

5. Being aggrieved from the order passed by the learned Principal Judge, Family Court, the present revision has been filed asserting that the learned Court below had acted with material illegality, irregularity and impropriety. The material placed before the Court was not considered. Petitioner No.1 had left the .

company of the respondent without reasonable or probable cause, therefore, she is not entitled to claim any maintenance. She was residing separately from the respondent for more than 2 1/2 years of and there was no urgency in the matter. The respondent is a driver by profession and his monthly income salary is 12,500/- per month. The learned Principal Judge, Principal Judge, Family rt Court has not balanced the equities. The old mother and the sister are dependent upon the respondent. Respondent and his family members are living below the poverty line; therefore, it was prayed that the order passed by the learned Principal Judge, be set aside.

6. I have heard Mr. Ajay Kumar learned Senior counsel assisted by Mr. Rohit, learned counsel for the petitioner and Mr. Devender K. Sharma learned counsel for the respondents.

7. Mr Ajay Kumar learned Senior counsel submitted that the matter was referred to the mediation wherein the differences between the parties were resolved and petitioner no.1 agreed to reside with the respondent in her matrimonial home. The execution filed by petitioner no.1 was also withdrawn as per the compromise. However, she has not fulfilled her promise. No .

reasonable cause has been assigned by petitioner no. 1 to reside separately from the respondent and claim maintenance. The learned Principal Judge, Principal Judge, Family Court did not of consider the plea taken by the respondent that petitioner no.1 is residing separately from the respondent without any reasonable cause and there is no justification for grating the maintenance.

rt Hence, he prayed that the present petition be allowed and the order passed by the learned Principal Judge, Family Court, Bilaspur, H.P. be set aside.

8. Mr. Devender K. Sharma, learned counsel for the respondents supported the order passed by the learned Principal Judge, Family Court Bilaspur, H.P. and submitted that no interference is required

with the same.

9. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

10. Petitioner No.1 specifically stated in her petition that she has no source of income. The respondent stated that she has sufficient means to maintain herself. However, he had not specified the means available to the petitioner. Therefore, her plea that she is unable to maintain herself is to be accepted as .

correct at this stage.

11. It was submitted that petitioner no.1 is residing separately from the respondent without any reasonable cause.

of Learned Principal Judge, Family Court had rightly considered the compromise effected between the parties and the undertaking made by the respondent that he would mend his behaviour. This undertaking corroborates the plea that the petitioner was subjected to domestic violence. It was laid down by the Hon'ble Supreme Court in *Sirajmohmedkhan Versus Hafizunnisa Yasinkhan* AIR 1981 Supreme Court 1972 that where there is a reasonable apprehension in the mind of the wife that she would be physically harmed, she has a reasonable cause to reside separately from the husband and to claim maintenance. It was observed:

20. A clear perusal of this provision manifestly shows that it was meant to give a clear instance of circumstances which may be treated as a just ground for the refusal of the wife to live with her husband. As already indicated by virtue of this provision, the proviso takes within its sweep all other circumstances similar to the contingencies contemplated in the Amending Provision as also other instances of physical, mental or legal cruelty not excluding the impotence of the husband. These circumstances, therefore, clearly show that the grounds on which the wife refuses to live with her husband should be just and reasonable as contemplated by the proviso. Similarly, where the wife has a reasonable .

apprehension arising from the conduct of the husband that she is likely to be physically harmed due to persistent demands of dowry from her husband's parents or relations, such apprehension also would be manifestly a reasonable justification for the wife's refusal to live with her husband. Instances of this nature may be multiplied but we have mentioned some of the circumstances to show the real scope and ambit of the proviso and the Amending provision of which is, as already indicated, by no means exhaustive.

12. The reliance was placed upon the compromise effected before the learned Mediator to submit that once petitioner no.1 had agreed to reside with the respondent in her matrimonial home, she is not entitled to any maintenance unless she establishes the reasonable cause. The fact that the petitioner was subjected to Domestic Violence despite the undertaking given by the respondent will

give rise to the apprehension in the mind of petitioner no.1 that her safety is in jeopardy in her matrimonial home. Therefore, she has reasonable cause to reside separately from the respondent and claim the maintenance.

13. In any case the question whether the wife has a reasonable cause to reside separately from her husband or not is not to be considered at this stage. It was laid down by this Court in Subhash Chand v. Krishani Devi, 2021 SCC OnLine HP 7309, that granting interim maintenance is like providing first aid to the wife. It was observed:

16. Granting interim maintenance is similar to giving first aid. Chapter IX of the Criminal Procedure Code, 1973, provides a quick remedy by a summary procedure to protect the applicant against starvation and tide over immediate difficulties by a deserted wife or children to secure some reasonable sum by way of maintenance. S. 125(1)(a) of CrPC provides a grant of maintenance to the wife, unable to maintain herself. Proviso to S. 125 CrPC empowers the Magistrate to order monthly allowance for the interim maintenance and also the expenses of such proceeding during its pendency. The foundation of the measures of social Justice enacted by the Legislature lay beneath the sweep of Article 15 (3) of the Constitution of India. It fulfils the concept of a welfare State in a vibrant democracy by safeguarding wives and children and preventing them from the modes of vagrancy and its consequences. Given the above, it would be appropriate for the Courts to direct the person against whom an application is made under S. 125 of the Code to pay some reasonable sum by way of maintenance to the applicant pending the final disposal of the application

14. Therefore, the Court is only concerned with the prevention of vagrancy and destitution at the stage of granting interim maintenance. She cannot be denied maintenance on the ground that she had left her matrimonial home without a reasonable cause.

15. Mr. Ajay Kumar, learned Senior Counsel has relied upon a certificate issued by M.C.Shimla certifying that the respondent and his family members are living below the poverty .

line. Reliance was also placed upon the income certificate, in which the total income has been shown as 33,000/- per year.

These documents will not assist the respondent because he has specifically stated in para 1(b) of the reply that his monthly salary is 12,500/- per month, therefore, the income of the respondent has to be treated as 12,500/-

rt

16. The respondent asserted that he has to maintain his mother and sister. This plea is not acceptable. The certificate issued by the Urban Development Department states that the mother of

the respondent earns money from working in various households, which shows that the respondent's mother has her independent income and cannot be called to be dependent upon the respondent; therefore, the plea that respondent has to maintain his mother and sister cannot be accepted at this stage.

17. The learned Principal Judge, Family Court had awarded the maintenance of 5000/- per month to petitioner no.1 and 1500/- per month to respondent no.2. The State Government has fixed the minimum wage of 350/- per day or 10,500/- per month which means that this amount is required for the survival of a person. Hence, the maintenance of 5000/- awarded in .

favour of petitioner no.1 cannot be said to be excessive. Petitioner no.2 is minor. She also requires money for her food, clothing medicine etc. Keeping in view these considerations, the amount of of 1500/- is not excessive. This would leave an amount of 6000/-

for the respondent which should be sufficient to maintain himself because petitioners no.1 and 2 have to maintain themselves on an rt income of 6500/-.

18. Therefore, there is no infirmity in the order passed by the learned Principal Judge, Family Court and no interference is required with the same.

19. Consequently, the present petition fails and the same is dismissed. The observations made hereinbefore shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) Judge 09th January,2024.

(Ravinder)